

TERMS AND CONDITIONS

Fuel 2 Go Pty Ltd ACN 683 689 787

1. Definitions and Interpretation

1.1 Definitions

In this Agreement, unless the context otherwise requires, the following definitions apply:

- (a) **Account Application** means the account application form for the establishment of a fuel supply account between F2G and the Customer;
- (b) **Agreement** means these Terms and Conditions, the Account Application for the Customer (if any) and any Purchase Order or request for the supply of Goods, services or Fuel Tanks accepted by F2G;
- (c) **Commencement Date** means the earlier of:
 - (i) the date of installation of the first Fuel Tank for the Customer; and
 - (ii) the date of the first supply of Goods to the Customer,or such other date specified by F2G as the Commencement Date;
- (d) **Fees** means the fees payable by the Customer to F2G under this Agreement for the supply of Fuel, Goods and Fuel Tanks, as notified by F2G to the Customer from time to time;
- (e) **Fuel** means fuel or fuel additives supplied by F2G to the Customer under this Agreement;
- (f) **Fuel Tanks** means any fuel tanks leased by F2G to the Customer under this Agreement;
- (g) **Goods:**
 - (i) means the Fuel and any goods and/or other items of personal property supplied or to be supplied by F2G to the Customer in accordance with this Agreement, other than Fuel Tanks;
 - (ii) in clause 12, includes commingled goods and any other item in which any Goods may be incorporated as parts, components or materials and the proceeds of sale of any of them;
- (h) **Government Agency** means:
 - (i) a government or government department or other body;
 - (ii) a governmental, semi-governmental or judicial person; or
 - (iii) a person (whether autonomous or not) who is charged with the administration of the law.
- (i) **Customer** includes:
 - (i) a person who requests the supply of Goods and/or services;
 - (ii) a person who requests the lease of Fuel Tanks from F2G;

- (iii) a person who acquires Goods or services from F2G; and/or
- (iv) the Customer named in any Account Application or Purchase Order;
- (j) **Equipment** means the Fuel Tanks and any item of plant and equipment (including motor vehicles) owned or leased by F2G and provided to the Customer under this Agreement;
- (k) **F2G** means Fuel 2 Go Pty Ltd ACN 683 689 787;
- (l) **GST Act** means *A New Tax System (Goods and Services Tax) Act 1999* (Cth);
- (m) **Initial Term** has the meaning given to that term in clause 8.1(a);
- (n) **Law** means any statute, regulation, by-law, ordinance or other determination of any Government Agency with the force of law in Australia and New Zealand;
- (o) **Personnel** means directors, employees, agents, contractors, and subcontractors;
- (p) **PIN** means a personal identification number that enables the use of a Tag;
- (q) **PPSA** means the *Personal Property Securities Act 2009* (Cth);
- (r) **PPSR** means the Personal Property Securities Register established under the PPSA;
- (a) **Purchase Order:**
 - (i) means any order or request made by the Customer and accepted by F2G for the supply by F2G of Goods, Fuel Tanks and/or services in any form and however described; and
 - (ii) includes:
 - (A) an oral request for the supply of Goods, Fuel Tanks and/or services which F2G accepts;
 - (B) or an invoice, proposal or quote provided by F2G at the Customer's request, where F2G has agreed to supply the Goods, Fuel Tanks and/or services specified in that document;
- (b) **Related Body Corporate** has the same meaning given to it in the *Corporations Act 2001* (Cth);
- (c) **Security Interest** has the meaning given to that term in the PPSA;
- (d) **Site** means the location at which the Customer requests F2G to supply Goods or services or to deliver Fuel Tanks;
- (e) **Supplier** means a person making a Supply;
- (f) **Supply** has the meaning given to that term in the GST Act;
- (g) **Tag** means a digitally encoded key tag or card issued by F2G to measure Fuel usage at a Site; and

- (h) **Term** means the term of this Agreement set out in clause 8.1.

1.2 Interpretation

In this Agreement, unless the context clearly indicates otherwise:

- (a) a reference to:
- (i) a clause, schedule, annexure or party is a reference to a clause, schedule, annexure or party to this Agreement;
 - (ii) a party includes its executors, personal representative, administrators, successors and assigns;
 - (iii) 'document', 'deed' or 'agreement' (including a reference to this Agreement) includes the document, deed or agreement as varied, amended, novated or supplemented and includes all recitals, schedules, appendices and exhibits to it;
 - (iv) legislation or a legislative provision includes any statutory modification or substitution of that legislation or provision and any subordinate legislation issued under that legislation or provision; and
 - (v) 'person' includes a corporation, trust, partnership, unincorporated body, government, local authority or agency, or other entity, whether or not it constitutes a separate legal entity;
- (b) headings and any table of contents do not form part of this Agreement or affect its interpretation;
- (c) a word or phrase that is derived from or is another grammatical form of a defined word or phrase has corresponding meaning;
- (d) the meaning of general words is not limited by specific examples introduced by 'including', 'for example' or similar expressions;
- (e) the singular includes the plural and vice versa;
- (f) monetary amounts are expressed in Australian dollars;
- (g) a 'day', 'month' or 'year' means a calendar day, month or year; and
- (h) all or part of this Agreement must not be construed against the interests of a party because that party or its lawyers were responsible for its drafting or because that party relies on a provision of this Agreement to protect itself.

2. Supply of Fuel

- (a) The Customer has requested F2G to provide the Fuel to the Customer from time to time.
- (b) F2G has agreed to supply the Fuel to the Customer subject to the terms of this Agreement.

3. Lease of Fuel Tank

3.1 Lease

During the Term, F2G agrees to lease the Fuel Tanks to the Customer and the Customer agrees to lease the Fuel Tanks from F2G in accordance with the terms and conditions of this Agreement.

3.2 Use

The Customer must use the Fuel Tanks in a safe and appropriate manner and must comply in all respects with all directions provided by F2G in respect of the Fuel Tanks and all applicable laws, regulations, requirements and rules reasonably necessary for the operation of the Fuel Tanks.

3.3 Fuel Tank Order

- (a) At any time during the Term, the Customer may request additional Fuel Tanks from F2G.
- (b) F2G may in its sole discretion:
 - (i) accept or reject an order requested under clause 3.3(a);
 - (ii) determine the delivery date or delivery period for the additional Fuel Tank.
- (c) The Customer cannot request the return of any Fuel Tank unless agreed by F2G.
- (d) If there are additional Fuel Tanks provided by F2G under clause 3.3, the Customer acknowledges that the Fees will be increased to reflect the additional Fuel Tanks.

4. General Fuel Terms

4.1 General Fuel Terms

- (a) F2G retains property in all Fuel until it receives full payment.
- (b) F2G is not liable for any failure to supply Fuel due to a lack of, unavailability of, or suspension of F2G supplies.
- (c) The Customer warrants that the Fuel will be used for commercial or business purposes only with a view to using or transforming it in the conduct of a business.
- (d) F2G warrants that the Fuel will comply with all relevant Laws.
- (e) To the extent permitted by law, F2G excludes all other warranties, representations and guarantees, including that the Fuel will have any particular component, quality or ability. F2G advises that Fuel at certain locations may contain up to 50ppm of sulphur.

4.2 Bulk Fuel Delivery

The Customer must provide safe access to the Site. All fuel storage facilities, loading hoses and ancillary equipment at the Site must be kept in good working order and compliant with all relevant Laws.

5. Tag Fuel

5.1 Tags

- (a) F2G will issue Tags to the Customer from time to time as requested by the Customer.
- (b) The Customer must and must ensure its Personnel only access and obtain Fuel from the Fuel Tanks by using the Tags.
- (c) Tags remain the property of F2G at all times and must be returned to F2G by the Customer within 24 hours of demand by F2G.
- (d) The Customer must return the Tags to F2G at the end of the Term.

- (e) If the Customer provides the Tags to any of its Personnel and those Personnel cease to be employed or engaged by the Customer, the Customer must ensure that the Tags are collected from those Personnel.
- (f) Where the Customer is unable to collect the Tags as specified in clause 5.1(e), then the Customer must immediately notify F2G.

5.2 Tag PIN

- (a) The Customer may:
 - (i) nominate a PIN for each Tag in its possession; and
 - (ii) request F2G to change the PIN at any time.
- (b) The Customer must keep each Tag and its respective PIN safe and secure at all times.

6. Invoice

- (a) F2G may issue an invoice to the Customer for Fees from time to time and at such intervals determined by F2G.
- (b) Without limitation, invoices for Fees may be issued:
 - (i) on receipt of a Purchase Order;
 - (ii) on completion of the work the subject of a Purchase Order;
 - (iii) on delivery of Goods; and/or
 - (iv) at the end of each month.

7. Payment Terms

7.1 Invoice Terms

The Customer must pay any invoice within 14 days of the date of issue of that invoice.

7.2 Deposit

- (a) F2G may at its discretion require the Customer to pay a deposit prior to the delivery of any Goods or performance of any services.
- (b) Where F2G holds a deposit from the Customer, the deposit is security for the performance of the Customer's obligations in this Agreement and for the payment of all amounts owing by the Customer to F2G, and not only in payment of the invoice price for the Fuel Tanks, Goods or services to which the deposit relates.
- (c) The Customer is not entitled to require the return of the deposit until all such monies are paid in accordance with this Agreement.
- (d) F2G may at any time, and without notice, apply any deposit held from the Customer in satisfaction of any amounts owing by the Customer to F2G.

7.3 Method of Payment

- (a) All payments required to be made by the Customer under this Agreement will be made in cleared funds in Australian dollars and free of any set off, or counterclaim and without deduction or withholding.
- (b) F2G may, at any time and without notice, set off and deduct from any amounts which may be payable to

the Customer for any reason, any amount payable by the Customer to F2G under this Agreement.

7.4 Interest

- (a) If the Customer fails to pay an invoice when due, the Customer will pay to F2G in addition to the amount due, interest on all outstanding amounts at a rate of the Queensland Law Society's standard default interest rate plus two percentage points.
- (b) The interest payable under clause 7.4:
 - (i) accrues from day to day from and including the due date for payment up to the actual date of payment; and
 - (ii) may be capitalised by F2G at monthly intervals.

7.5 Deferral of performance

If the Customer fails to pay any invoice as required by this Agreement, F2G may defer performance of any services, supply of any Fuel or delivery of any Fuel, Fuel Tanks or other Goods until the outstanding invoice is paid, without limiting any other remedies available to F2G.

8. Term and Termination

8.1 Term

This Agreement commences on the Commencement Date and continues for:

- (a) an initial period of 5 years (**Initial Term**); or
- (b) the expiry of any extended term under clause 9.2; or
- (c) until earlier terminated by either party in accordance with this Agreement.

8.2 Extension

- (a) Within 30 days prior to the end of the Initial Term or any extended term, the Customer may give notice to F2G that it wishes to extend the Term for a further period of 5 years.
- (b) F2G can either accept or reject any extension request by the Customer in its sole discretion.
- (c) If F2G accepts an extension request, then the Term will be deemed to be extended for a further period of 5 years.

8.3 Termination without cause

F2G may terminate this Agreement at any time by giving one month's written notice to the Customer.

8.4 F2G's right to terminate

- (a) F2G may terminate this Agreement, terminate any credit used or unused, reject any Purchase Order, withhold supply of Fuel Tanks, Goods or services or refuse delivery or return of Fuel Tanks or Goods at any time and without reason or notice. In particular (but without limitation) F2G may do so if:
 - (i) the Customer becomes insolvent;
 - (ii) F2G determines that a material adverse event has occurred with respect to the Customer;
 - (iii) events beyond the control of F2G occur make supply of any Fuel Tanks, Goods or services

- impossible or undesirable (in the sole opinion of F2G);
- (iv) F2G cannot obtain the Fuel Tanks or Goods ordered in the quantity or at the price required by the Customer;
- (v) the Customer breaches any of the terms or conditions of this Agreement;
- (vi) the Customer fails to pay any money due to F2G; or
- (vii) the Customer breaches any other agreement with F2G.
- (b) Upon termination under clause 17(a):
 - (i) all amounts due by the Customer become immediately due and payable to F2G; and
 - (ii) the Customer must immediately make the Equipment available for collection by F2G, in good working order free from any damage.
- (c) Termination under clause 17(a) will not affect F2G's right to institute legal proceeding for the recovery of all money owed to F2G.

8.5 Actions on termination

If this Agreement is terminated for any reason, F2G may take possession of the Equipment and may enter onto the Customer's premises in order to remove, gain access to or take possession of the Equipment.

9. Fuel Tank Transfer on Termination

9.1 Transfer of Fuel Tanks

If this Agreement is terminated:

- (a) at any time during the period that is 6 years from the Commencement Date – the Customer may purchase the Fuel Tanks from F2G for an amount determined by F2G; or
- (b) on or after the date that is 6 years from the Commencement Date – the Customer may on or before termination request that ownership of the Fuel Tanks is transferred from F2G to the Customer at no further cost to the Customer.

9.2 Return of Fuel Tanks

If the Fuel Tanks are not transferred to the Customer under clause 9.1, then on termination of this Agreement:

- (a) the Customer must make the Fuel Tanks available for collection by F2G and provide F2G with safe access to the Site to take possession of the Fuel Tanks;
- (b) the Customer shall return the Fuel Tanks in good working condition, reasonable wear and tear excepted; and
- (c) should the Fuel Tanks be returned in a condition other than as agreed, the Customer will be liable for the cost of repair or replacement, which shall be deducted from any deposit or paid directly to F2G.

9.3 Ownership

- (a) During the Term, F2G is and remains the sole and exclusive owner of the Fuel Tanks.

- (b) The Customer will have no right, title or interest in the Fuel Tanks except as expressly set forth in this Agreement.
- (c) Ownership of the Fuel Tanks will only pass to the Customer upon:
 - (i) full payment of the agreed purchase price under clause 9.1(a); or
 - (ii) on the transfer of the Fuel Tanks under clause 9.1(b).

9.4 Maintenance and Use

- (a) The Customer agrees to use the Fuel Tanks only for their intended purpose and in accordance with the manufacturer's guidelines.
- (b) F2G is responsible for maintaining the Fuel Tanks in good working order during the Term period, including regular servicing.
- (c) The Customer must notify F2G immediately if the Fuel Tanks are damaged or require repair.

9.5 Insurance

The Customer agrees to insure the Fuel Tanks at their own expense against loss, theft, and damage, and to provide proof of insurance upon request by F2G.

10. Equipment on Site

10.1 F2G Equipment

The Customer acknowledges and agrees that, in the course of F2G providing services to the Customer, F2G may leave or store Equipment at the Site.

10.2 Retention of Title in Equipment

The Customer agrees that:

- (a) F2G remains the sole and exclusive owner of the Equipment; and
- (b) the Customer has no right, title and interest in the Equipment.

10.3 Access to Equipment

F2G may, with or without prior notice to the Customer, enter upon the Site to inspect, repair or maintain the Equipment and/or to take possession of the Equipment. The Customer agrees to provide F2G with access to any Site for that purpose.

10.4 Security Interest

The Customer grants to F2G a Security Interest over the Equipment to secure payment of any amounts owing by the Customer to F2G.

11. Risk

- (a) Risk in any Goods to be supplied to the Customer passes to the Customer upon delivery to the Site advised by the Customer.
- (b) F2G's delivery note is conclusive evidence of the volume of Fuel delivered and the date of delivery.

12. Retention of Title

12.1 Title to Goods

- (a) Legal and equitable title and property in the Goods is vested in F2G until full payment in cleared funds is

made to, and received by, F2G for all amounts owing by the Customer, inclusive of the purchase price for the Goods and any other money owing to F2G for other goods or services or on the same or any other account.

- (b) Title will not pass to the Customer nor to any person to whom any Goods are purported to be sold by the Customer until full payment has been received by F2G in accordance with clause 11.

12.2 Positive obligations

Until payment in full has been made and is received in cleared funds by F2G, the Customer will:

- (a) hold the Goods as agent of F2G;
- (b) store the Goods separately so that they can be identified as the property of F2G and must not mix the Goods with other goods;
- (c) insure the Goods (to the extent that they are insurable) for their full replacement value and have the name of F2G noted on the policy as payee; and
- (d) to the extent that the Goods are the proceeds of sale, hold such proceeds (up to the total amount owing to F2G) as trustee for F2G.

12.3 Negative obligations

Until payment in full has been made and is received in cleared funds by F2G, the Customer must not:

- (a) claim any interest in the Goods to secure any liquidated or unliquidated debt or obligation due by F2G to the Customer;
- (b) claim a lien over the Goods or any part of them; or
- (c) create or purport to create any interest in the Goods in favour of any other person without the consent of F2G.

12.4 Inspection of Goods

F2G may, with or without prior notice to the Customer, enter upon any premises at which the Goods or any part of them are stored, or at which F2G reasonably believes they are stored, to inspect the Goods and/or to take possession of the Goods and whether the Goods may be in the Customer's possession, custody or control. The Customer agrees to provide F2G with access to any such premises for that purpose. F2G may direct the Customer to deliver the Goods to F2G and the Customer must comply with that direction. The Customer waives the right to receive any statutory notice or any notice under the PPSA.

12.5 Costs

The Customer must pay F2G's costs and expenses in exercising its rights under clause 12 and indemnifies F2G against any claim, action or damages arising directly or indirectly out of the exercise by F2G of any power or right under clause 12. Where F2G exercises any power to enter premises, that entry will not give rise to any action of trespass or similar action on the part of the Customer against F2G, its employees, servants, contractors or agents.

12.6 Sale of repossessed Goods

F2G may sell or otherwise deal with any Goods repossessed by F2G and may sell the Goods with the trade mark or name of the Customer on those Goods, and the Customer grants an

irrevocable licence free of charge to F2G in respect of the trade mark or name for that purpose.

12.7 Security Interest

- (a) The Customer acknowledges and agrees that:
 - (i) the purchase price for Goods is the total invoiced cost evidenced by the invoices which relate to those Goods inclusive of all parts or components of that total but without prejudice to F2G's right to amend the invoices in the case of error; and
 - (ii) clause 12 constitutes a security agreement for the purposes of the PPSA and creates a Security Interest in favour of F2G in all Goods supplied previously (if any) and all Goods that will be supplied in the future by F2G to the Customer to secure payment.
- (b) It is the intention of F2G and the Customer that F2G's Security Interest under this clause 10 is a purchase money security interest as defined in the PPSA.
- (c) The Customer grants to F2G a Security Interest in the Goods and in all the Customer's present and after-acquired property in which Goods have been attached or incorporated, including commingled goods.

13. Personal Property Securities Act

- (a) The parties agree that terms used in this clause 13 have the same meaning and are subject to the provisions of the PPSA.
- (b) The Customer consents to F2G affecting a registration on the PPSR (in any manner F2G considers appropriate) in relation to any Security Interest arising under or in connection with this Agreement.
- (c) The Customer agrees that F2G may attend to registration of its Security Interest on the PPSR without notice to the Customer.
- (d) The Customer undertakes to:
 - (i) promptly sign any further documents and/or provide any further information which F2G may reasonably require to:
 - (A) register a financing statement or financing change statement in relation to a security interest on the PPSR;
 - (B) register any other document required to be registered pursuant to the PPSA; and/or
 - (C) correct a defect in a statement or document referred to in clauses 13(d)(i)(A)) and 13(d)(i)(B);
 - (ii) pay F2G for all expenses incurred in registering a financing statement or financing change statement on the PPSR or releasing any Goods or Equipment charged pursuant to the PPSA;
 - (iii) not register, or permit to be registered, a financing statement or a financing change statement in relation to the Goods or Equipment in favour of a third party, without prior written consent of F2G;

- (iv) give F2G not less than 14 days' written notice of any proposed changes in the Customer's details, including but not limited to changes in name, address, facsimile number, email address, trading name or business practices; and
 - (v) pay F2G for any costs incurred by F2G, including legal fees and disbursements on a solicitor-client basis, in obtaining an order pursuant to section 182 of the PPSA and/or enforcing or attempting to enforce any security interest created in favour of F2G under this Agreement or otherwise.
- (e) The Customer and F2G agree that sections 96, 115 and 125 of the PPSA do not apply to the security interest created by this Agreement.
 - (f) Pursuant to section 144 of the PPSA, the Customer waives its rights to receive notices under sections 95, 118, 121, 130, 132 and 135 of the PPSA.
 - (g) The Customer waives its rights as a grantor and/or debtor under sections 142 and 143 of the PPSA.
 - (h) The Customer waives its rights to receive a verification statement in accordance with section 157 of the PPSA, unless otherwise agreed to in writing by F2G.
 - (i) Any payments by the Customer under this Agreement will be applied in the order specified in section 14(6)(c) of the PPSA regardless of any direction or request by the Customer, any agreement between the parties (express or implied) or the application of any such payment by F2G. F2G does not waive any rights under this clause 13 by applying any payment in a different order.

14. Return of Goods

- (a) Goods may only be returned by the Customer to F2G if they have been wrongly supplied or oversupplied (or as otherwise agreed by F2G).
- (b) Regardless of clause 14(a), F2G is not required to accept any Goods returned to it later than 30 days from the date of the invoice.

15. Delivery

Delivery of any Goods ordered will be effected by F2G at the Site specified by the Customer and at the Customer's cost. Delivery charges will be calculated and charged at the discretion of F2G.

16. Alteration and Cancellation

- (a) The Customer cannot cancel or alter any Purchase Order if F2G has commenced providing the services or ordered the relevant Goods, unless otherwise agreed by F2G.
- (b) If F2G agrees to the alteration of any Purchase Order, F2G may alter the fees payable by the Customer in respect of that Purchase Order.

17. Limitation of Liability

- (a) The liability of F2G for any breach of the Agreement or any related order or contract and/or in tort (including negligence) is limited at F2G's option to:
 - (i) the replacement or repair of Goods and services supplied;

- (ii) the supply of equivalent Goods and services;
 - (iii) the cost of replacing or repairing the Goods supplied or of acquiring equivalent Goods or services; or
 - (iv) the amount paid by the Customer to F2G pursuant to the Agreement.
- (b) To the maximum extent permitted by law, F2G will not be liable for any loss of profit, loss of goodwill, loss of opportunity and/or any special, punitive, indirect or consequential loss or damage incurred by the Customer or any other person whether directly or indirectly related to this Agreement.
 - (c) F2G is not liable for any loss or damage caused to the Customer by reason of any delay, lack of supply, industrial action, fire, flood, riot, war, embargo, civil commotion, act of God or any other event which is beyond F2G's control.

18. Indemnity

The Customer will indemnify F2G and keep F2G indemnified against any claim, loss, damage, liability, cost or expense that may be incurred by F2G arising from or in connection with any breach or default by the Customer of this Agreement or any related Purchase Order or contract.

19. Additional Requirements

The Customer must, at the request of F2G, provide such further information as is required by F2G, whether for the purpose of assessing the Customer's creditworthiness or otherwise.

20. GST

20.1 Definitions

Any terms capitalised in clause 20.1 and not already defined in clause 1.1 have the same meaning given to those terms in the GST Act.

20.2 GST exclusive

The consideration for a Supply made under or in connection with this Agreement does not include GST (unless expressly stated otherwise).

20.3 Taxable Supply

If a Supply made under or in connection with this Agreement is a Taxable Supply, then at or before the time the consideration for the Supply is payable the Supplier must give the Recipient a Tax Invoice for the Supply.

21. General

21.1 Entire Agreement

This Agreement constitutes the entire agreement of the parties as to its subject matter and supersedes and cancels all prior F2G arrangements, understandings and negotiations between the parties and all representations or warranties made by a party unless repeated in this Agreement.

21.2 Inconsistency

These Terms and Conditions and any Account Application or Purchase Order will be read and interpreted as a single agreement but if there is any conflict or inconsistency between these Terms and Conditions and/or any Account Application or Purchase Order, the various parts of this

Agreement will be interpreted and applied in the following order:

- (a) the relevant Account Application;
- (b) the relevant Purchase Order; then
- (c) these Terms and Conditions.

21.3 Costs

The Customer must pay:

- (a) any legal costs (on a solicitor/client indemnity basis) stamp duty, and other expenses payable in relation to this Agreement, or a guarantee or other security document provided in conjunction with this Agreement;
- (b) all costs incurred by F2G relating to any default by the Customer; and
- (c) F2G's costs and disbursements incurred in pursuing any recovery action, or any other claim or remedy, against the Customer, including debt recovery fees paid to a collection agent or otherwise and legal costs on an indemnity basis and whether or not the recovery action, claim or remedy is successful.

21.4 Assignment

- (a) The Customer's obligations under this Agreement cannot be transferred or assigned and any attempt to do so will be void.
- (b) F2G may assign its rights and obligations pursuant to this Agreement to another party without notice to, and without the consent of, the Customer.

21.5 Waiver

No failure to exercise or delay in exercising any right, power or remedy under this Agreement operates as a waiver. A single or partial exercise or waiver of the exercise of any right, power or remedy does not preclude any other or further exercise of that or any other right, power or remedy. A waiver is not valid or binding on the party granting that waiver unless made in writing.

21.6 No merger

The covenants, conditions, provisions and warranties contained in this Agreement do not merge or terminate upon a termination of this Agreement, but to the extent they are capable of having effect, remain in full force and effect.

21.7 Notice

- (a) A notice, demand, consent, approval, request or other communication (**notice**) to be given under this Agreement:
 - (i) must be in writing in English;

- (ii) must be delivered by a method contemplated by the table in this clause 21.7; and
- (iii) shall be duly received at the time and on the day set out in the table in this clause 21.7.

Delivery Method	Duly Received
Personal delivery to the party to whom the notice is addressed.	When it is personally delivered.
Sent by registered post or express post.	On the 3rd Business Day after posting by registered post. On the next Business Day following express post.
Sent by courier.	On the day that the courier records delivery of any notice sent by courier.
Transmission by email.	On the day of transmission by email.

- (b) Where any notice is personally delivered or transmitted by facsimile or email after 5:00pm on any day, it shall be treated as having been duly given and received at 9:00am on the next Business Day.

21.8 Governing law

- (a) This Agreement is made under and will be governed by the laws of Queensland, Australia.
- (b) Each party irrevocably submits to the exclusive jurisdiction of the courts of Queensland, Australia.

21.9 Severability

This Agreement will, to the extent possible, be interpreted and construed so as not to be invalid, illegal or unenforceable in any respect. If a provision is found to be illegal, invalid or unenforceable:

- (a) that provision will, be read down to the extent that it may be necessary to ensure that it is not illegal, invalid or unenforceable and as may be reasonable in the circumstances to give it a valid operation; or
- (b) if the provision or part of it cannot effectively be read down, that provision or part of it will be deemed to be void and severable and the remaining provisions of this Agreement will not in any way be affected or impaired and will continue regardless of that illegality, invalidity or unenforceability.